

probability, no act or omission attributable to Dr. Juarez caused or contributed to plaintiff's injuries. (SSUMF No. 7.)

Defendant presents sufficient evidence to support his initial burden of showing entitlement to judgment on plaintiff Haley Gascon's claim for medical negligence and plaintiff Christopher Gates' associated claim for loss of consortium.

The burden therefore shifts to plaintiffs to show one or more triable issues of material fact. As plaintiffs submitted no evidence and in fact filed a notice of non-opposition, plaintiffs fall short of their burden.

Based on the foregoing, defendant Richard G. Juarez's motion for summary judgment is granted.

8. S-CV-0054035 Rojas, Jasmine v. Ford Motor Co.

The motion for attorneys' fees is dropped from calendar as no moving papers were filed with the court.

9. S-CV-0054693 Pereira, Christine v. Hammerhead Pools

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Petitioner is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition to Confirm Arbitration Award

Petitioner Christine Pereira asks the court to confirm an arbitration award and enter judgment thereon against Hammerhead Pools, LLC. No opposition has been filed.

"A party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondents all parties to the arbitration" (Code Civ. Proc., § 1285.) Such a petition shall provide the agreement to arbitrate, the name(s) of the arbitrator(s), and the arbitrator's award. (Code Civ. Proc., § 1285.4.) "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, . . . unless in accordance with this chapter it corrects and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.)

The unopposed petition is granted as prayed. The court confirms the award of arbitrator issued on January 6, 2026 in favor of petitioner as against respondent Hammerhead Pools, LLC. Petitioner's request for pre-judgment interest is granted in the amount of \$14,149.47. Judgment is entered for petitioner against respondent Hammerhead Pools, LLC in the amount of \$454,512.83, which includes damages in the amount of \$335,361,

arbitration costs of \$26,000, attorneys' fees and costs of \$79,002.36, and prejudgment interest of \$14,149.47.

The court on its own motion schedules this matter for an order to show cause hearing on **July 21, 2026 at 9:00 a.m. in Department 32** regarding dismissal as to defendant Michael Marier who was not included in the arbitrator's award.

10. S-CV-0054901 Zehring, Richard v. General Motors

Motion to Compel Deposition

Plaintiff moves for an order compelling deposition and production of deposition documents pursuant to Code of Civil Procedure section 871.26(c) and imposing monetary sanctions of \$2,500 against defense counsel pursuant to Code of Civil Procedure section 871.26(j). The motion is unopposed.

Plaintiff submits evidence he served defendant four deposition notices to depose its person most qualified ("PMQ"), all of which defendant objected to. Plaintiff also submits evidence that defendant was not being forthcoming with dates to reschedule the PMQ deposition. Plaintiff submits evidence he served a fourth amended deposition notice scheduled for February 3, 2026 and indicates it is anticipated defendant will not comply with the deposition date. However, this motion was filed on January 20, 2026, before the date for deposition had passed. As the motion is unopposed and no reply was filed, the court has not been presented with any evidence that deposition of defendant's PMQ did not proceed as scheduled on February 3, 2026.

The court on its own motion continues this motion to **July 7, 2026 at 8:30 a.m. in Department 32**. Plaintiff is directed to file and serve (1) a notice of continued hearing and (2) supplemental declaration(s) updating the court on whether deposition occurred on February 3, 2026 as noticed in the fourth amended deposition notice.

11. S-CV-0055995 Panasyuk, Benjamin A v. County of Placer

The demurrer to the complaint is continued to **July 24, 2026 at 8:30 a.m. in Department 1** to be heard by Commissioner Christine S. Dehr together with a motion to strike filed in the same action. Department 1 is located at 101 Maple Street, Auburn, California 95603.

12. S-CV-0056237 Forrest, Devin v. Mav KG LLC

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Motion to Stay PAGA Action

Defendant moves to stay this PAGA action pending resolution of a motion to compel arbitration in a related class action pursuant to Code of Civil Procedure section 1281.4. In